

Madhyanchal Vidyut Vitran Nigam Ltd. v. Kranti Gupta

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 3 March 2025 · 2025:AHC-LKO:12597 · Criminal Appeal Defective U/S 372 Cr.P.C. No. 2 of 2025 · **Leave to appeal against acquittal dismissed.**

HEADNOTE

Leave to appeal by the distribution licensee against acquittal on a charge of electricity theft is refused where the trial court found that the mandatory inspection procedure in Chapter VIII of the U.P. Electricity Supply Code, 2005 was not followed, the key of the meter room remained with the licensee's officials (a fact not denied by the prosecution), and the alleged meters were never sent to a laboratory for testing. Non-compliance with that Code procedure is not a mere technicality that can be ignored so as to disturb the acquittal.

FACTUAL SUMMARY

Madhyanchal Vidyut Vitran Nigam Ltd., through the Executive Engineer, Electricity Distribution Division, Sandila, Hardoi, sought leave to appeal the acquittal of Kranti Gupta, proprietor of Radhey Shyam Roller Flour Mill, Hardoi, by the Special Judge E.C. Act/Additional District Judge-IV, Hardoi. A 3 July 2018 inspection was said to have found meters at the factory and on the pole, and CT/PT terminals, tampered so that the meter ran slow; the respondent refused the inspection report. An FIR and charge-sheet followed. The trial court acquitted for non-compliance with Chapter VIII of the Electricity Supply Code. The licensee contended that acquittal on a procedural default was unsustainable.

HOLDING-UNITS

INTERPLAY · UP-2005::8

theft-inspection-procedure-mandatory-leave-to-appeal-refused

HOLDING

Where the prosecution case is that CT/PT terminals were tampered so as to slow the meter, leave to appeal against acquittal will not be granted if the trial court found that the mandatory provisions of Chapter VIII of the Electricity Supply Code were not complied with, DW-1's evidence that the meter-room key lay with the licensee's officials was not denied, and the alleged meters were not sent to a laboratory for testing. Failure to follow that procedure is not a ground to reverse the acquittal. Leave to appeal is dismissed. ¶ 4-5

FLAG The Court referred to Chapter VIII of the Electricity Supply Code and to 'paragraph-20 and 33 of the UP Electricity Code 2005' (not standard clause numbers). Counsel described the offence as Section 135B of the Electricity Act, 2003.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METERS OR CT/PT TERMINALS WERE IN FACT TAMPERED, OR WHETHER THEFT WAS PROVED ON THE MERITS APART FROM THE PROCEDURAL DEFAULT.

¶ 3-4